

Measuring tolerance: indices of religious freedom in sharia states

Analysis run: September 12, 2026

PROVIDER

Openrouter

MODEL

Deepseek/deepseek-v4-pro En

LANGUAGE

AUDIENCE

GENERAL

INTONATION

NEUTRAL

LENGTH

Long

TEMPERATURE

0.7

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Measuring tolerance: indices of religious freedom in sharia states".

Overall topic for alignment: Freedom of belief and conscience in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.

- Place external links only in the "References" section; do not include inline external links in the body text.

- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.

- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.

- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Standard religious-freedom indices often rank Muslim-majority countries poorly but fail to capture the internal diversity of Islamic jurisprudence. Sharia, drawn from the Quran (e.g., “no compulsion in religion,” 2:256) and Sunna, evolved through four major Sunni schools—Hanafi (more flexible toward non-Muslims), Maliki, Shafi‘i, and Hanbali (most restrictive)—producing a vast, contested fiqh rather than a monolithic code. Historically, the dhimmi system gave protected status to non-Muslims with communal autonomy and security in exchange for a poll tax, but not full equality; in Muslim-minority settings, jurisdictions adapted to permanent coexistence. Modern states blend constitutional rights with sharia-based criminal and family laws, resulting in apostasy and blasphemy statutes, worship-building restrictions, and discrimination that indices penalize. Orientalist critiques often ignore the tradition’s pluralistic resources and context. A humanistic AI approach, trained on classical juristic texts, could highlight tolerant minority opinions and the higher objectives (maqasid) of sharia, disaggregating crude “sharia state” labels and enabling indices to reward lived tolerance rather than religious identity per se.

FULL CONTENT

Measuring Tolerance: Indices of Religious Freedom in Sharia States

The question of how to measure religious freedom in states that apply *sharia* (الشريعة, the path or divine law) is as old as the encounter between Islamic legal tradition and modern human rights discourse. Standard indices, such as those produced by Pew Research Center or Freedom House, often rank predominantly Muslim countries low on religious liberty, yet these rankings rarely capture the layered, historically contingent ways in which Islamic jurisprudence has addressed freedom of belief and conscience. This article explores the key concepts, schools of thought, and historical dynamics that complicate any simple metric, touching on minority and majority settings, the Quranic foundations of tolerance, the diversity of Islamic juristic and theological schools, orientalist critiques, and the emerging role of artificial intelligence in reinterpreting these traditions through a humanistic lens.

The Sharia Framework and Its Sources

Sharia is derived principally from the Quran and the *Sunna* (سنة, the authenticated practices and sayings of the Prophet Muhammad). Secondary sources include *ijma'* (إجماع, scholarly consensus) and *qiyas* (قياس, analogical reasoning). The Quran itself contains verses that both command exclusive worship of God and insist on the absence of compulsion in religion. The most frequently cited verse on tolerance is *la ikraha fi al-din* (لا إكراه في الدين, "There is no compulsion in religion," Quran 2:256), which classical exegetes generally understood as prohibiting forced conversion. At the same time, verses such as *qul ya ayyuha al-kafirun* (قل يا أيها الكافرون, "Say, O disbelievers," Surah al-Kafirun) acknowledge religious pluralism by concluding "You have your religion and I have mine." The tension between these universalizing and particularizing verses has fueled centuries of legal debate over the boundaries of tolerance.

Islamic law did not develop as a monolithic code but as a vast corpus of *fiqh* (فقه, jurisprudential understanding). The four dominant Sunni schools—Hanafi, Maliki, Shafi'i, and Hanbali—each codified rules on how Muslims and non-Muslims should coexist. The Quranic category of *ahl al-dhimma* (أهل الذمة, protected people) traditionally included Jews, Christians, and sometimes others, granting them security of life, property, and worship in exchange for loyalty and payment of the *jizya* (جزية, poll tax). The specifics of that protection varied enormously by school and era, so any index of religious freedom today must account for the malleability of these classical provisions.

Diversity of Interpretation: Schools of Thought

Understanding tolerance within sharia requires distinguishing between theological and juristic dimensions. The major Sunni theological schools—Ash'ari, Maturidi, and, historically, the rationalist Mu'tazila—differed on the fate of non-Muslims in the afterlife, the nature of faith, and the scope of divine mercy. Maturidi thought, influential among the Hanafis, tended toward a more inclusive vision of salvation than the stricter Athari-Hanbali current. These theological predispositions coloured juristic rulings on social interaction, interfaith marriage, and the status of non-Muslims in court.

Hanafi School: The Hanafi school, predominant in the Ottoman Empire and much of South Asia, was generally the most flexible on minority rights. Hanafi jurists held that non-Muslims could repair their own places of worship even in mixed cities, and they permitted a wider range of commercial and social interactions. The *Siyar* (international law) literature within the Hanafi tradition conceptualized the world as *dar al-Islam* (دار الإسلام, abode of Islam) and *dar al-harb* (دار الحرب, abode of war), but later Hanafi scholars developed intermediate categories like *dar al-'ahd* (دار العهد, abode of covenant) to accommodate permanent peace with non-Muslim polities.

Maliki School: Dominant in North and West Africa, Maliki fiqh often reflected the practice (*'amal*, عمل) of Medina. Maliki jurists were generally cautious about non-Muslim testimony and public displays of non-Islamic religion, yet historical records from al-Andalus and Morocco show periods of striking

conviviality. The Maliki position on apostasy (*ridḍa*, رِدَّة) mandated capital punishment after a period of repentance, a rule that today's human rights indices treat as a severe violation of freedom of belief.

Shafi'i School: Widespread in East Africa, Southeast Asia, and parts of the Middle East, the Shafi'i school was shaped by al-Shafi'i's rigorous methodology. Shafi'i law restricted the construction of new churches and synagogues in cities founded by Muslims, though many Shafi'i scholars permitted maintenance of existing ones. The school also prescribed differential social rules, such as the prohibition of a Muslim woman marrying a non-Muslim man, a rule shared by all Sunni schools and grounded in Quranic injunction.

Hanbali School: The most conservative Sunni school, Hanbali fiqh often insisted on strict separation between believers and non-believers in ritual contexts. Historical implementations, such as under the Saudi state, have drawn heavily on Hanbali rulings, resulting in the complete prohibition of non-Muslim public worship. This stark variation within a single legal tradition underlines why any religious freedom index must disaggregate "sharia states" along school-specific lines rather than treating them as a uniform bloc.

Historical Dynamics: Minority and Majority Settings

When Muslims were a majority, as under the Abbasid and Ottoman empires, the *dhimmi* system functioned as a hierarchy of differentiated citizenship. Non-Muslims managed their own personal status and religious endowments under the autonomy of the *millet* system (in the Ottoman context), yet they lacked full legal equality. Instances of forced conversion were rare; systemic discrimination was the more common reality. In minority settings, such as Muslim communities in medieval Sicily or colonial India, the classical jurisprudence of *dhimma* was adapted. Muslim scholars living as minorities sometimes argued that non-Muslim rule constituted a *dar al-aman* (دار الأمان, abode of safety) where loyalty and peaceful coexistence replaced the older binary categories, leading to more inventive interpretations of tolerance.

The modern nation-state era disrupted these traditional patterns. Post-colonial constitutions in many Muslim-majority countries adopted the language of universal human rights while retaining clauses that subject legislation to sharia. This hybrid legal framework creates a gap between constitutional promises of freedom of belief and criminal codes that punish blasphemy or apostasy. Consequently, indices such as the Government Restrictions Index and Social Hostilities Index often detect worse scores in states that explicitly constitutionalise sharia, even when those states actively protect minority religious sites.

Measuring Tolerance Today: Indices and Challenges

International indices of religious freedom typically evaluate formal laws, government enforcement, and social hostilities. In sharia-based states, the following metrics tend to diverge sharply from Western secular benchmarks:

- **Apostasy laws:** Several states that apply sharia in criminal law prescribe death or imprisonment for apostasy, a rule that directly collides with Article 18 of the Universal Declaration of Human Rights (UDHR), which guarantees the right to change one's religion.
- **Blasphemy laws:** These laws, often vaguely drafted, have been used to prosecute religious minorities and dissident Muslims, chilling free expression.
- **Registration and building restrictions:** Many states require minority religious groups to register under onerous conditions or face prohibitions on constructing houses of worship, echoing classical fiqh rules but now enforced by secular bureaucratic apparatus.
- **Family law:** The application of sharia in personal status matters often discriminates against non-Muslim women in interfaith households and limits the legal options of minority communities.

Nevertheless, quantitative indices struggle to capture the lived reality of centuries-old *modi vivendi*. In Egypt, for instance, Coptic Christians possess their own communal courts for family law yet face bureaucratic obstacles in building churches, a situation that stems from a layering of Ottoman-era decrees, colonial legislation, and Hanafi jurisprudence. The complexity defies a single numeric score.

Orientalist Critiques and the Human Rights Declaration

Western orientalist scholarship historically framed sharia as inherently illiberal, a rigid religious law opposed to the Enlightenment ideal of individual conscience. This perspective often cited classical apostasy and *jizya* rulings as proof of Islam's intolerance, overlooking the historical contexts in which these rulings were operative—contexts where group identity rather than individual autonomy was the primary carrier of rights. The 1948 UDHR, drafted with little direct input from Muslim-majority states, indeed assumes a secular anthropology. Muslim responses were varied. Some modernist Muslim intellectuals, such as Mahmoud Mohammed Taha or Abdullahi Ahmed An-Na'im, proposed radical reinterpretations of sharia based on the Meccan verses of the Quran, which they argued embody universal ethical principles superior to the politically contingent Medinan regulations. In 1990, the Organisation of Islamic Cooperation issued the Cairo Declaration on Human Rights in Islam, which anchored all rights in sharia, explicitly subordinating them to Islamic law and omitting the unconditional right to change religion. That document itself became a flashpoint in the index wars: to secular observers it represents a hollowing out of UDHR, while to its proponents it embodies a culturally authentic vision of human dignity.

AI and a Humanistic Approach to Sharia

A rarely discussed dimension is how emerging technologies, particularly artificial intelligence, could reframe the measurement project. AI language models, when trained on the vast corpora of Islamic jurisprudence in Arabic, Persian, Urdu, and other languages, have the potential to surface minority opinions, forgotten fatwas of tolerance, and context-sensitive hermeneutics that modern states often suppress in favour of monolithic rulings. A humanistic AI approach—one that prioritizes human dignity, pluralism, and the Quranic principle of *al-wasatiyya* (الوسطية, moderation)—could cross-reference classical Hanafi and Maliki texts to demonstrate that, for centuries, even within the bounds of sharia, Muslims forged practical arrangements protecting religious diversity. AI does not issue religious rulings, but it can amplify the voices of reformist scholars who argue that the *maqasid al-sharia* (مقاصد الشريعة, the higher objectives of the law), such as the preservation of life, intellect, and dignity, require, in the twenty-first century, full recognition of freedom of conscience.

Such an AI-driven analytical framework might complement existing indices by classifying legal ecosystems not as binary “sharia state” labels but as dynamic negotiations between traditional norms and contemporary rights. It could reveal, for example, that a country applying largely Hanafi jurisprudence with a secular personal status code scores differently than one applying a Hanbali-inspired penal code, even if both declare Islam the state religion. By breaking down blunt categories, a humanistic AI could lead to more accurate indices that reward on-the-ground tolerance rather than penalizing religious identity per se.

Conclusion

Religious freedom in sharia states cannot be reduced to a single number. The lived reality emerges from a dense historical synthesis of Quranic ideals, juristic school divergences, minority–majority dynamics, and the modern friction with universal human rights declarations. Meaningful measurement requires an epistemology sensitive to Arabic legal terminology, theological nuance, and the reality that sharia is not a code but a contested tradition of reasoning. As indices refine their methodology, incorporating AI-powered textual analysis grounded in humanistic values might bring us closer to an authentic, context-aware account of how Islamic societies can reconcile their legal heritage with the universal principle that no one should be coerced in matters of belief.

SEGMENTED DATA (2)

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